

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RAFAEL MUNIZ,

Plaintiff,

-against-

**SECOND
AMENDED
COMPLAINT**

CITY OF NEW YORK,
KYLE STANLEY, Individually,
JAY RIVERA, Individually, and
JOHN or JANE DOE 1 through 10, Individually
(the names John and Jane Doe being fictitious, as the true
names are presently unknown),

14 CV 2269 (FB) (RML)

Jury Trial Demanded

Defendants.

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Plaintiff RAFAEL MUNIZ, by his attorneys, the Leventhal Law Group, P.C.,
complaining of the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. §

1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff RAFAEL MUNIZ is a fifty-two-year old Hispanic-American man residing in Brooklyn, New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, KYLE STANLEY, JAY RIVERA, and JOHN or JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW

YORK.

FACTS

12. On January 11, 2013, at approximately 4:00 p.m., in the vicinity of Pitkin Avenue and Berriman Street, Brooklyn, New York, defendant NYPD officers, including KYLE STANLEY and JAY RIVERA, unlawfully stopped, searched, and assaulted plaintiff RAFAEL MUNIZ.

13. At said date, time and location, MUNIZ was a lawful pedestrian and was not engaged in any suspicious activity when the defendant officers, including STANLEY and RIVERA, approached MUNIZ in an NYPD vehicle and ordered MUNIZ to stop.

14. MUNIZ complied with the defendants' order and stopped walking. Defendants STANLEY and RIVERA exited their vehicle and unlawfully detained and searched MUNIZ.

15. STANLEY and RIVERA handcuffed MUNIZ despite lacking probable cause to believe MUNIZ had committed any crimes or offenses.

16. While handcuffing MUNIZ, STANLEY and RIVERA repeatedly struck claimant on his body and ribs.

17. After MUNIZ was restrained by handcuffs, STANLEY and RIVERA slammed MUNIZ to the ground.

18. While MUNIZ was restrained by handcuffs and on the ground, STANLEY, RIVERA, and multiple other defendant officers yet to be identified, repeatedly struck MUNIZ in the chest, body, and head with their hands and feet

19. As a result of defendants' brutal assault, MUNIZ suffered serious physical injuries and mental anguish, including ten rib fractures, a collapsed lung, and bruises and abrasions to his head and body.

20. After assaulting MUNIZ, the defendant officers imprisoned MUNIZ in a police vehicle and transported him to the NYPD's 75th precinct stationhouse.

21. Shortly after MUNIZ arrived at the 75th precinct stationhouse, defendant officers, yet to be identified, escorted MUNIZ to a holding cell area, assaulted MUNIZ in said area by repeatedly striking him on his body, and imprisoned MUNIZ in a holding cell.

22. While in the stationhouse, a defendant officer yet to be identified, subjected MUNIZ to a humiliating and unlawful strip search, compelling MUNIZ to expose his genitals to said officer.

23. Thereafter, NYPD police officers transported MUNIZ to Brookdale Hospital. MUNIZ was triaged in Brookdale Hospital at approximately 7:12 p.m. and thereafter diagnosed with a collapsed lung, ten fractured ribs, and bruising and abrasions to his head and body. Doctors admitted MUNIZ to the hospital for observation and treatment.

24. Plaintiff remained in Brookdale Hospital while in police custody until his discharge on January 14, 2013.

25. NYPD officers imprisoned MUNIZ until his arraignment on January 15, 2013 on baseless charges filed in Kings County Criminal Court under docket no. 2013KN003793; said charges having been filed based on the false allegations of defendant KYLE STANLEY. Defendant STANLEY initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiff for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: in an effort to avoid discipline and/or otherwise cover up for the aforementioned acts of brutality and abuse of authority.

26. The defendant police officers, including STANLEY and RIVERA, conspired to create and manufacture false evidence against MUNIZ, which STANLEY conveyed to the Kings

County District Attorney's Office, causing said evidence to be used against MUNIZ in the aforementioned legal proceeding.

27. Specifically, STANLEY falsely alleged in police documents and to the Kings County District Attorney, and falsely swore in criminal court complaint filed against MUNIZ, that: he observed MUNIZ sniffing from a pen cap in front of a bodega; that he recovered said pen cap from MUNIZ's pants pocket where he observed MUNIZ place it; that MUNIZ resisted a lawful arrest by flailing his arms and kicking STANLEY and other police officers and by not allowing STANLEY to handcuff him; and that when STANLEY recovered said pen cap MUNIZ repeatedly attempted to knock the pen cap out of STANLEY's hand. These allegations are entirely false.

28. STANLEY, RIVERA and other defendant police officers yet to be identified conspired to create said false evidence and created said false evidence knowing same would be used against MUNIZ in a criminal prosecution.

29. As a result of said false allegations, the Kings County District Attorney filed the following false charges against MUNIZ in Kings County Criminal Court under docket no. 2013KN003793: resisting arrest, criminal possession of a controlled substance in the 7th degree, attempted assault in the 3rd degree, disorderly conduct (two counts), and harassment in the 2nd degree.

30. At MUNIZ's arraignment, all the charges filed against MUNIZ were adjourned in contemplation of dismissal. On July 12, 2013, all charges were dismissed and sealed.

31. The defendant NYPD officers STANLEY, RIVERA, and JOHN and JANE DOE 1 through 10 either directly participated in and/or failed to intervene in the illegal conduct described herein.

32. Defendants STANLEY and RIVERA stopped and searched MUNIZ pursuant to an unlawful custom or practice of stopping and searching individuals based on their race, nationality, and/or ethnicity, and not based on reasonable suspicion or probable cause.

33. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of defendant CITY OF NEW YORK, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees, and due to a custom, policy, and/or practice of: disproportionately stopping and searching individuals based on their race, nationality, or ethnicity; falsification of evidence; excessive force; falsely arresting and manufacturing false evidence against individuals in a conspiracy to justify their use of excessive force; arresting innocent persons in order to meet “productivity goals” (i.e. arrest quotas); arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; covering up excessive force or abuse of authority pursuant to a “blue wall of silence”; failing to report misconduct of fellow officers; and/or falsely arresting individuals and engaging in a practice of falsification in an attempt to justify the false arrest.

34. The aforesaid event is not an isolated incident. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct as documented in civil rights actions filed in the United States District Courts in the Eastern and Southern Districts of New York as well as in New York State courts, in complaints filed with the NYPD’s Internal Affairs Bureau and the CITY OF NEW YORK’S Civilian Complaint Review Board, and in claims filed with the CITY OF NEW YORK. As a result, defendant CITY OF NEW YORK is aware that NYPD officers, including the defendants, are insufficiently supervised and trained regarding: the use of excessive force; unlawful stops,

searches, and arrests of individuals based on their race, nationality or ethnicity; the false arrest and falsification of evidence against individuals to justify their use of excessive force and false arrest; unlawful stops, searches and arrests to meet “productivity goals” (i.e. arrest quotas); unlawful stops, searches, and arrests for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; covering up excessive force and abuse of authority pursuant to a “blue wall of silence”; and their failure to report misconduct of fellow officers and their duty to report said misconduct.

35. In addition, in another civil rights action filed in this court involving false allegations by NYPD officers, United States District Judge Jack B. Weinstein pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

Colon v. City of New York, et. al., 2009 WL 4263362, *2 (E.D.N.Y.).

36. Moreover, the existence of the aforesaid unconstitutional customs and policies may further be inferred from the admission by former NYPD Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that NYPD commanders are permitted to set “productivity goals.”

37. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs’ civil rights.

38. Moreover, upon information and belief, defendant CITY OF NEW YORK was

aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

39. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

40. All of the aforementioned acts deprived plaintiff RAFAEL MUNIZ of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

43. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

44. As a result of the foregoing, plaintiff RAFAEL MUNIZ sustained, *inter alia*, physical injuries, mental anguish, emotional distress, and deprivation of his liberty and his constitutional rights.

45. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983
as to defendants STANLEY and RIVERA)

46. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "45" with the same force and effect as if fully set forth herein.

47. Defendants STANLEY and RIVERA arrested plaintiff without probable cause, causing him to be detained against his will for an extended period of time and subjected to physical restraints.

48. Defendants STANLEY and RIVERA caused plaintiff RAFAEL MUNIZ to be falsely arrested and unlawfully imprisoned.

49. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Excessive Force under 42 U.S.C. § 1983
as to defendants STANLEY, RIVERA, and JOHN or JANE DOE 1 through 9)

50. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. The level of force employed by defendants STANLEY, RIVERA, and JOHN or

JANE DOE 1 through 9 was excessive, objectively unreasonable and otherwise in violation of plaintiff's constitutional rights.

52. As a result of the aforementioned conduct of defendants, plaintiff RAFAEL MUNIZ was subjected to excessive force and sustained physical and emotional injuries.

53. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION

(Unlawful Strip Search under 42 U.S.C. §1983 as to defendant JOHN DOE 10)

54. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "53" with the same force and effect as if fully set forth herein.

55. Defendant JOHN DOE 10 strip searched plaintiff in the absence of reasonable individualized suspicion that plaintiff was in possession of weapons or contraband at the time he was searched.

56. Defendant deprived plaintiff RAFAEL MUNIZ of his right to be free from unlawful strip searches.

57. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Violation of Right to Fair Trial under 42 U.S.C. § 1983
as to defendants STANLEY and RIVERA)

58. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “57” with the same force and effect as if fully set forth herein.

59. Defendants STANLEY and RIVERA conspired to create, and created false evidence against plaintiff.

60. Defendants STANLEY and RIVERA knew that said false evidence would be utilized against plaintiff in legal proceedings, and utilized said false evidence against plaintiff in legal proceedings.

61. As a result of defendants’ creation and use of false evidence, plaintiff RAFAEL MUNIZ suffered a violation of his constitutional right to a fair trial, as guaranteed by the United States Constitution.

62. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983
as to defendants STANLEY and RIVERA)

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “62” with the same force and effect as if fully set forth herein.

64. Defendants STANLEY and RIVERA conspired to issue and issued criminal process against plaintiff RAFAEL MUNIZ by causing his arrest and prosecution in a criminal court.

65. Defendants STANLEY and RIVERA caused plaintiff RAFAEL MUNIZ to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for their acts of brutality and abuse of authority, and

thereby violated plaintiff's right to be free from malicious abuse of process.

66. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983
as to defendants JOHN or JANE DOE 1 through 9)

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "66" with the same force and effect as if fully set forth herein.

68. Defendants JOHN or JANE DOE 1 through 9 either subjected plaintiff to excessive force or had an affirmative duty to intervene on behalf of plaintiff RAFAEL MUNIZ, whose constitutional right to be free from excessive force was being violated in their presence by other officers.

69. The defendants failed to intervene to prevent the unlawful conduct described herein.

70. As a result of the foregoing, plaintiff RAFAEL MUNIZ was subjected to excessive force.

71. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983
as to defendants STANLEY and RIVERA)

72. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “71” with the same force and effect as if fully set forth herein.

73. Defendants STANLEY and RIVERA stopped, detained and searched plaintiff RAFAEL MUNIZ because of plaintiff’s national origin, race, or ethnicity.

74. As a result of the foregoing, plaintiff RAFAEL MUNIZ was deprived of his rights under the Equal Protection Clause of the United States Constitution.

75. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Fourth Amendment Claim of Unreasonable Search under 42 U.S.C. § 1983
as to defendants STANLEY and RIVERA)

76. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered “1” through “75” with the same force and effect as if fully set forth herein.

77. Defendants STANLEY and RIVERA unreasonably searched plaintiff.

78. Defendants STANLEY and RIVERA unreasonably searched plaintiff thereby causing plaintiff to suffer emotional distress, embarrassment and humiliation.

79. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983 as to defendant CITY OF NEW YORK)

80. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “79” with the same force and effect as if fully set forth herein.

81. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

82. The aforementioned customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department included, but were not limited to, inadequate screening, hiring, retaining, training and supervising its employees; subjecting individuals to excessive force; a widespread practice of falsification; disproportionately stopping, searching, and arresting individuals based on their race, nationality or ethnicity; falsely arresting and falsifying evidence against individuals in a conspiracy to justify their use of excessive force and false arrest; unlawfully stopping, searching and arresting individuals to meet “productivity goals” (i.e. arrest quotas); unlawfully stopping, searching, and arresting individuals for professional advancement, overtime compensation, and/or other objectives outside the ends of justice; covering up excessive force and abuse of authority pursuant to a “blue wall of silence”; and failing to report misconduct of fellow officers.

83. Said customs, policies, usages, practices, procedures and rules were the moving forces behind the violation of plaintiff RAFAEL MUNIZ’S rights as described herein.

84. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

85. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff RAFAEL MUNIZ.

86. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff RAFAEL MUNIZ as alleged herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff RAFAEL MUNIZ as alleged herein.

88. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff RAFAEL MUNIZ was unlawfully stopped, searched, arrested, subjected to excessive force, and deprived of his right to a fair trial.

89. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff RAFAEL MUNIZ'S constitutional rights.

90. All of the foregoing acts by defendants deprived plaintiff RAFAEL MUNIZ of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from excessive force;
- D. To be free from the failure to intervene;
- E. To receive his right to fair trial;

- F. To be free from malicious abuse of process;
- G. To receive equal protection under law; and
- H. To be free from unreasonable searches.

91. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

Supplemental State Law Claims

92. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

94. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

95. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

96. Plaintiff has complied with all conditions precedent to maintaining the instant action.

97. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A TENTH CAUSE OF ACTION
(False Arrest under the laws of the State of New York
as to defendants STANLEY, RIVERA and CITY OF NEW YORK)

98. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “97” with the same force and effect as if fully set forth herein.

99. Defendants STANLEY and RIVERA arrested plaintiff RAFAEL MUNIZ without probable cause.

100. Defendants STANLEY and RIVERA caused plaintiff to be detained against his will for an extended period of time and subjected to physical restraints.

101. As a result of the aforementioned conduct, plaintiff RAFAEL MUNIZ was unlawfully imprisoned in violation of the laws of the State of New York.

102. As a result of the aforementioned conduct, plaintiff RAFAEL MUNIZ suffered physical injuries, mental anguish, emotional distress and loss of freedom.

103. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(Assault under the laws of the State of New York as to defendants
STANLEY, RIVERA, JOHN or JANE DOE 1 through 10, and CITY OF NEW YORK)

104. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “103” with the same force and effect as if fully set forth herein.

105. Defendants placed plaintiff RAFAEL MUNIZ in apprehension of imminent harmful and offensive bodily contact.

106. As a result of defendants' conduct, plaintiff RAFAEL MUNIZ has suffered physical pain, mental anguish, emotional distress together with shock, fright, apprehension, embarrassment, and humiliation.

107. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION

(Battery under the laws of the State of New York as to defendants
STANLEY, RIVERA, JOHN or JANE DOE 1 through 9, and CITY OF NEW YORK)

108. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "107" with the same force and effect as if fully set forth herein.

109. Defendants made offensive contact with plaintiff RAFAEL MUNIZ without privilege or consent.

110. As a result of defendants' conduct, plaintiff RAFAEL MUNIZ has suffered physical pain, mental anguish, emotional distress, together with shock, fright, apprehension, embarrassment, and humiliation.

111. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Malicious Abuse of Process under laws of the State of New York
as to defendants STANLEY, RIVERA and CITY OF NEW YORK)

112. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “111” with the same force and effect as if fully set forth herein.

113. Defendants STANLEY and RIVERA issued criminal process against plaintiff RAFAEL MUNIZ by causing him to be arrested, arraigned and prosecuted in criminal court.

114. Defendants caused plaintiff RAFAEL MUNIZ to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to avoid discipline for the above mentioned acts of brutality and abuse of authority.

115. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York
as to defendant CITY OF NEW YORK)

116. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered “1” through “115” with the same force and effect as if fully set forth herein.

117. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who conducted and participated in the arrest of plaintiff RAFAEL MUNIZ.

118. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct

heretofore alleged in this Complaint.

119. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York
as to defendant CITY OF NEW YORK)

120. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "119" with the same force and effect as if fully set forth herein.

121. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who conducted and participated in the stop, search, assault, battery, and false arrest of plaintiff RAFAEL MUNIZ.

122. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Respondeat Superior liability under the laws of the State of New York
as to defendant CITY OF NEW YORK)

123. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "122" with the same force and effect as if fully set forth herein.

124. Defendant CITY OF NEW YORK is vicariously liable for the acts of its

employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

125. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION
(Violation of N.Y.S. Constitution Article 1 §11 as to defendants
STANLEY, RIVERA and CITY OF NEW YORK)

126. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "125" with the same force and effect as if fully set forth herein.

127. As a result of defendants' conduct, plaintiff was deprived of his right to equal protection of laws.

128. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION
(Violation of NYS Constitution Article 1 §12 as to defendants
STANLEY, RIVERA, JOHN or JANE DOE 1 through 10, and CITY OF NEW YORK)

129. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "128" with the same force and effect as if fully set forth herein.

130. As a result of defendants' conduct, plaintiff RAFAEL MUNIZ was deprived of

his right to security against unreasonable searches, seizures, and interceptions.

131. As a result of the foregoing, plaintiff RAFAEL MUNIZ is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

132.

WHEREFORE, plaintiff RAFAEL MUNIZ demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
January 11, 2016

LEVENTHAL LAW GROUP, P.C.
Attorneys for Plaintiff RAFAEL MUNIZ
45 Main Street, Suite 230
Brooklyn, New York 11201
(718) 556-9600

By: s/
JASON LEVENTHAL (JL1067)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X

RAFAEL MUNIZ,

Plaintiff,

-against-

14 CV 2269 (FB) (RML)

CITY OF NEW YORK,
KYLE STANLEY, Individually,
JAY RIVERA, Individually, and
JOHN or JANE DOE 1 through 10, Individually
(the names John and Jane Doe being fictitious, as the true
names are presently unknown),

Defendants.

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SECOND AMENDED COMPLAINT

LEVENTHAL LAW GROUP, P.C.

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